

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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OMAR JARRETT,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER TRAVIS
SMIKLE, Tax No. 966860, POLICE OFFICER INDIA
GREENE, Tax No. 967907, POLICE OFFICER MARC
STAYE, Tax No. 963767, POLICE OFFICER ANDY
JEANCLAUDE, Tax No. 967932, LIEUTENANT NELSON
AYALA, Tax No. 948015, POLICE OFFICER AUBREY
HAMMOND, Tax No. 966610, POLICE OFFICER
AHMAD YAQUBI, Tax No. 966403, CAPTAIN THOMAS
REDMOND, Tax No. 94841, SERGEANT WINSTON
MCDONALD, Tax No. 943545, and POLICE OFFICERS
JOHN DOES #s 1-10,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 4, 2024

Yours, etc.

David Hazan

JACOBS & HAZAN PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-269

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street, New York, New York 10007
POLICE OFFICER TRAVIS SMIKLE, Tax No. 966860, 69th Precinct Detective Squad
POLICE OFFICER INDIA GREENE, Tax No. 967907, Narcotics Borough Brooklyn South
POLICE OFFICER MARC STAYE, Tax No. 963767, Military and Extended Leave Desk
POLICE OFFICER ANDY JEANCLAUDE, Tax No. 967932, Narcotics Borough Brooklyn South
LIEUTENANT NELSON AYALA, Tax No. 948015, 79th Precinct
POLICE OFFICER AUBREY HAMMOND, Tax No. 966610, 69th Precinct
POLICE OFFICER AHMAD YAQUBI, Tax No. 966403, 69th Precinct
CAPTAIN THOMAS REDMOND, Tax No. 948411, Detective Bureau
SERGEANT WINSTON MCDONALD, Tax No. 943545, Internal Affairs Bureau

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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OMAR JARRETT,

Plaintiff,

-against-

INDEX NO.:**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER TRAVIS
SMIKLE, Tax No. 966860, POLICE OFFICER INDIA
GREENE, Tax No. 967907, POLICE OFFICER MARC
STAYE, Tax No. 963767, POLICE OFFICER ANDY
JEANCLAUDE, Tax No. 967932, LIEUTENANT
NELSON AYALA, Tax No. 948015, POLICE OFFICER
AUBREY HAMMOND, Tax No. 966610, POLICE
OFFICER AHMAD YAQUBI, Tax No. 966403,
CAPTAIN THOMAS REDMOND, Tax No. 94841,
SERGEANT WINSTON MCDONALD, Tax No. 943545,
and POLICE OFFICERS JOHN DOES #s 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff OMAR JARRETT, by his attorneys, Jacobs & Hazan, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that On June 4, 2021 at approximately 7:00 pm claimant was lawfully seated in the front passenger seat of a motor vehicle with two friends that was legally parked in the vicinity of 1672 E. 92nd St., Brooklyn, NY, when defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force. Defendants approached the vehicle, knocked on the windows of the vehicle, shined their flashlights into the vehicle, unlawfully ordered plaintiff and his friends to roll down all four windows in the vehicle, and unlawfully ordered plaintiff and his two friends to exit the vehicle. Defendants then proceeded to unlawfully shattered the driver's side window of the vehicle, which caused glass to shatter all over the vehicle, including onto plaintiff causing him to suffer minor lacerations. A piece of glass from the shattered window ended up entering plaintiff's eye. The officers forcibly removed plaintiff from the vehicle. Once plaintiff was out of the vehicle,

defendants pressed a TASER gun against plaintiff's chest without shooting it. The Defendant officers unlawfully handcuffed, and falsely arrested plaintiff without probable cause or legal justification. Plaintiff was transported against his will to the 69th Precinct, where he was unlawfully detained for many hours. On June 5, 2021, the defendants issued plaintiff a criminal summons containing false allegations including but not limited to, allegations that he resisted arrest, and released plaintiff from custody of the 69th Precinct. Upon information and belief the defendants did not turn the summons into Criminal Court because they were aware that the allegations contained on the summons were false. When Plaintiff appeared in criminal court to address the summons and was informed that the officers never turned in the summons and that there were no charges pending against him. At no time relevant herein did plaintiff commit a crime, nor did the police officers possess an objective factual basis to establish probable cause to believe he committed a crime or violated the law. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, denied him the right to due process, and subjected him to the use of excessive force, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff OMAR JARRETT is a resident of the state of New York.

3. Defendant POLICE OFFICER TRAVIS SMIKLE, Tax No. 966860, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER TRAVIS SMIKLE, Tax No. 966860, was at all times relevant herein, assigned to the 69th Precinct and is presently assigned to the 69th Precinct Detective Squad.

5. Defendant POLICE OFFICER TRAVIS SMIKLE, Tax No. 966860, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER INDIA GREENE, Tax No. 967907, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER INDIA GREENE, Tax No. 967907, was at all times relevant herein, assigned to the 69th Precinct and is presently assigned to Narcotics Borough Brooklyn South.

8. Defendant POLICE OFFICER INDIA GREENE, Tax No. 967907, is being sued in her individual and official capacity.

9. Defendant POLICE OFFICER MARC STAYE, Tax No. 963767, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant POLICE OFFICER MARC STAYE, Tax No. 963767, was at all times relevant herein, assigned to the 69th Precinct and is presently assigned to the Military and Extended Leave Desk

11. Defendant POLICE OFFICER MARC STAYE, Tax No. 963767, is being sued in his individual and official capacity.

12. Defendant POLICE OFFICER ANDY JEANCLAUDE, Tax No. 967932, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant POLICE OFFICER ANDY JEANCLAUDE, Tax No. 967932, was at all times relevant herein, assigned to the 69th Precinct and is presently assigned to Narcotics Borough Brooklyn South

14. Defendant POLICE OFFICER ANDY JEANCLAUDE, Tax No. 967932, is being sued in his individual and official capacity.

15. Defendant LIEUTENANT NELSON AYALA, Tax No. 948015, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant LIEUTENANT NELSON AYALA, Tax No. 948015, was at all times relevant herein, assigned to the 69th Precinct and is presently assigned to the 79th Precinct.

17. Defendant LIEUTENANT NELSON AYALA, Tax No. 948015, is being sued in his individual and official capacity.

18. Defendant POLICE OFFICER AUBREY HAMMOND, Tax No. 966610, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant POLICE OFFICER AUBREY HAMMOND, Tax No. 966610, was at all times relevant herein, assigned to the 69th Precinct

20. Defendant POLICE OFFICER AUBREY HAMMOND, Tax No. 966610, is being sued in his individual and official capacity.

21. Defendant POLICE OFFICER AHMAD YAQUBI, Tax No. 966403, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant POLICE OFFICER AHMAD YAQUBI, Tax No. 966403, was at all times relevant herein, assigned to the 69th Precinct

23. Defendant POLICE OFFICER AHMAD YAQUBI, Tax No. 966403, is being sued in his individual and official capacity.

24. Defendant CAPTAIN THOMAS REDMOND, Tax No. 948411, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant CAPTAIN THOMAS REDMOND, Tax No. 948411, was at all times relevant herein, assigned to the 69th Precinct, and is presently assigned to the Detective Bureau.

26. Defendant CAPTAIN THOMAS REDMOND, Tax No. 948411, is being sued in his individual and official capacity.

27. Defendant SERGEANT WINSTON MCDONALD, Tax No. 943545, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant SERGEANT WINSTON MCDONALD, Tax No. 943545, was at all times relevant herein, assigned to the 69th Precinct, and is presently assigned to the Internal Affairs Bureau.

29. Defendant SERGEANT WINSTON MCDONALD, Tax No. 943545, Tax No. 948411, is being sued in his individual and official capacity.

30. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

31. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

32. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

33. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

34. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

35. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

36. On June 4, 2021 at approximately 7:00 pm claimant was lawfully seated in the front passenger seat of a motor vehicle with two friends that was legally parked in the vicinity of 1672 E. 92nd St., Brooklyn, NY, when defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and subjected plaintiff to the use of excessive force.

37. Defendants approached the vehicle, knocked on the windows of the vehicle, shined their flashlights into the vehicle, unlawfully ordered plaintiff and his friends to roll down all four windows in the vehicle, and unlawfully ordered plaintiff and his two friends to exit the vehicle.

38. Defendants then proceeded to unlawfully shattered the driver's side window of the vehicle, which caused glass to shatter all over the vehicle, including onto plaintiff causing him to suffer minor lacerations.

39. A piece of glass from the shattered window ended up entering plaintiff's eye.

40. Plaintiff then began to open the vehicle's passenger side door to exit the vehicle, but before he could exit defendants grabbed plaintiff and pulled him out of the vehicle.

41. Once plaintiff was out of the vehicle, defendants pressed a TASER gun against plaintiff's chest without shooting it.

42. Defendants unlawfully searched plaintiff's pockets, and handcuffed plaintiff and falsely arrested him, without probable cause or legal justification.

43. At no time relevant herein did claimant commit a crime or violate the law, nor did the police officers possess objective facts to establish probable cause to believe claimant committed a crime or violated the law.

44. Defendants transported plaintiff to the 69th Precinct against his will, whereat he was unlawfully searched and detained in a filthy holding cell for many hours.

45. After plaintiff was unlawfully detained at the 69th precinct for numerous hours the officers unlawfully issued him a criminal summons containing false allegations, for allegedly resisting arrest, and released plaintiff from custody.

46. The officers generated official NYPD paperwork and issued plaintiff a criminal summons containing false, misleading, and incomplete allegations and evidence to support their purported basis for arresting plaintiff and charging him with crimes.

47. At no time relevant herein did plaintiff resist being arrested in any manner.

48. At no time relevant herein did plaintiff pose a threat to the officers or behave in a manner where the officers would have reasonably believed it was necessary to place a TASER gun to plaintiff's chest or subject plaintiff to any of the force used by the officers during the course of plaintiff's arrest.

49. Plaintiff appeared in Kings County Criminal Court to address the summons and was informed that the officers failed to turn in the summons and that there were no charges pending against him.

50. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

51. The incident was extremely psychologically damaging to plaintiff. Furthermore, as a result of the incident plaintiff suffered significant and permanent physical injuries.

52. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

53. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally use excessive force against members of the public without probable cause.

54. At the time of the underlying incident referenced herein the NYPD and defendant City of New York were on notice that defendant Lieutenant Nelson Ayala, Tax No. 948015, was unfit to be patrolling the streets of New York, and enforcing the laws of New York against members of the public.

55. Defendant Lieutenant Nelson Ayala has a lengthy history of (a) complaints made against him by members of the public, many of which have been substantiated; (b) lawsuits filed against him by members of the public alleging violations of their constitutional rights; (c) being disciplined by the NYPD on numerous occasions, for incidents, including but not limited to: (1) an incident where he was found to have perjured himself under oath to a grand jury, (2) incidents where he failed to submit summonses issued to individuals he arrested, as he did in the instant case, (3) and the determination that he filled out inaccurate police paperwork, (4) and conducting an unlawful stops as he did in the instant case.

56. Additionally, on or about July 2019, while Defendant Lieutenant Nelson Ayala was employed as a NYPD Sergeant he received minor discipline from the NYPD after his New York State Drivers License was suspended/revoked.

57. Although, on several occasions the NYPD disciplined defendant Lieutenant Nelson Ayala, the discipline was insufficient to act as a deterrent so that defendant Lieutenant Nelson Ayala would stop violating the law, violating the rights of members of the public, violating NYPD policy, and committing criminal acts such as perjury. Due to the City of New York's, and the NYPD's deliberate indifference to defendant Lieutenant Nelson Ayala's continuous unlawful conduct, the defendant continued engaging in such misconduct and violated plaintiff's constitutional rights in the underlying incident that is the subject of this lawsuit without any concern that he would receive any substantive repercussions.

58. Despite defendant Lieutenant Nelson Ayala's lengthy history of misconduct, and engaging in perjury to members of a grand jury, which is a crime, the City of New York, and the NYPD have chosen to promote the defendant from sergeant to lieutenant at sometime after the date of the underlying incident.

59. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from being unlawfully stopped, questioned, frisked, searched, falsely arrested, denied due process, and subjected to the use of excessive force against him because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers use excessive force against members of the public without probable cause.

60. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this

unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

61. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

62. The unlawful stop, question, frisk, search, false arrest, false imprisonment, right to due process, and excessive force used by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

63. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, denied due process, and falsely arrested and falsely imprisoned, without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

66. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

71. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The illegal approach, pursuit, stop and search inside plaintiff's pockets employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

73. Defendants lacked probable cause to search plaintiff.

74. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

**Violation of Plaintiff's Fifth Amendment and Fourteenth
Amendment Rights
Denial of Due Process**

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 76 with the same force and effect as if fully set forth herein.

78. Defendants, individually and collectively, manufactured and/or withheld false, misleading, and incomplete evidence.

79. The officers generated official NYPD paperwork and issued plaintiff a criminal summons containing false, misleading, and incomplete allegations and evidence to support their purported basis for arresting plaintiff and charging him with crimes.

80. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

81. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

(Excessive Force)

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The use of excessive force by defendants including but not limited to, shattering the vehicles window causing glass to enter plaintiffs eye, and pressing a TASER gun into plaintiffs chest in a manner that was intended to cause plaintiff to suffer pain was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

86. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

88. Defendants failed to intervene to prevent the unlawful conduct described herein.

89. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest, and subject plaintiff to the use of force pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that

many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

93. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stopped, questioned, frisked, searched, falsely arrested, denied due process to and subjected to the use of excessive force, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

94. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

95. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stopped, questioned, frisked, searched, falsely arrested, denied due process to, and use excessive force against members of the public when there is no factual basis to suspect the individual has committed a crime.

96. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

97. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

98. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, and arrests, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting, and subjecting individuals to the use of excessive force, without a factual basis supporting a legal reason to do so.

99. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of

defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

100. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

101. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of his rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

102. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

103. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff OMAR JARRETT demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 4, 2024

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
June 4, 2024



DAVID M. HAZAN